



AbbVie - Apogee

MN - 90027

Phase 1 Determination

Acquisition may be put into effect

19 August 2026

1. Determination and statement of reasons

Notified acquisition	Abbvie, Inc, via its wholly owned subsidiary Andor LLC (together, Abbvie), proposes to acquire 100% of the outstanding shares in Apogee Therapeutics, Inc. (Apogee) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Abbvie, is a North Chicago-based, New York Stock Exchange-listed global biopharmaceutical company active in the development and supply of medicines and therapies across a range of therapeutic areas, including immunology, oncology, neuroscience, aesthetics and eye care. In Australia, Abbvie supplies Rinvoq, a Janus Kinase inhibitor used to treat atopic dermatitis. The target, Apogee, is a San Francisco-based, NASDAQ-listed clinical-stage biotechnology company focused on developing a pipeline of biologic therapies for inflammatory and immunological diseases, including atopic dermatitis, asthma, eosinophilic oesophagitis and chronic obstructive pulmonary disease. Apogee's lead asset, zumilokibart (APG777), is a clinical-stage (Phase 2b) monoclonal antibody therapy that targets interleukin-13 (IL-13) for the treatment of atopic dermatitis. Apogee does not have any marketed products anywhere in the world.
Overlap and relationship between the Parties	Abbvie and Apogee overlap in the research and development of therapies for the treatment of atopic dermatitis.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information, as relevant. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • Rinvoq and APG777 are unlikely to be close substitutes, given their differentiated mechanisms of action, safety profiles, onset of action and methods of administration. • There are other competitors who already supply, or are

	active in the development of, atopic dermatitis therapies that will continue to compete with the merged entity. • The potential competition between the Parties in relation to other pipeline products for the treatment of atopic dermatitis is uncertain, given the early stages of the Parties' respective pipeline products.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**